

**UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK**

DEFENDANTS' ANSWER AND COUNTERCLAIM

Case No: 2024-CV-005678 | Filed: March 21, 2024
Jane Smith v. Global Tech Inc. and John Roe

ANSWER

1. Defendants admit the Court has jurisdiction and deny all remaining allegations in paragraph 1.
2. Defendants admit Jane Smith was employed from January 15, 2020 to December 10, 2023 and deny all remaining allegations.
3. Defendants deny that termination was without cause. Performance improvement plans dated September 1 and October 15, 2023 document repeated deficiencies.
4. Defendants deny any retaliation. The termination decision predated the November 5, 2023 Audit Committee report by sixty days.

AFFIRMATIVE DEFENSES

First Defense: Failure to state a claim upon which relief can be granted.

Second Defense: Plaintiff failed to mitigate damages.

Third Defense: Claims are barred by the doctrine of at-will employment.

COUNTERCLAIM — BREACH OF CONFIDENTIALITY

Defendants counterclaim against Plaintiff for breach of the confidentiality provisions of the Employment Agreement. Plaintiff disclosed proprietary source code and client lists to a competitor, TechRival Corp., on or about November 20, 2023. Defendants seek damages of \$1,200,000 and injunctive relief.

Dated: March 21, 2024 | Skadden Arps LLP, Counsel for Defendants